IN THE HIGH COURT OF ORISSA AT CUTTACK

ABLAPL No.12099 of 2026
CNR No. ODHC010808702026

Raja Swain ..... ***Petitioner***
Represented by Adv. -
Sujit Kumar Pattnaik

-versus-

State Of Odisha ..... ***Opposite Party***
Represented by Adv. -
P.Satpathy, A.S.C.

CORAM:
THE HON'BLE MR. JUSTICE ADITYA KUMAR MOHAPATRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through Virtual Mode.

2. Heard learned counsel for the Petitioner and learned Counsel for the State. Perused the Anticipatory Bail Application as well as the F.I.R.

3. This is an application under Section 482 of the B.N.S.S., 2023 filed by the Petitioner for anticipatory bail, involving offence punishable under Sections 109/ 112(2)/ 121 / 132/296 of B.N.S, 2023 read with Section 3 of Orissa Prevention of Gambling Act, 1954, in G.R. Case No.1946 of 2026 in the Court of learned J.M.F.C.(R) (Cog.), Berhampur arising out of Berhampur Sadar P.S. Case No.616 of 2026.

4. Learned counsel for the Petitioner, at the outset, submitted

that the Petitioner does not want to press this bail application and seek liberty to surrender before the court below and move an application for bail.

5. Considering such submissions, the Petitioner is permitted to surrender before the learned court in seisin over the matter within a period of three weeks from today and move an application for bail. In such eventuality, learned court in seisin over the matter shall release the Petitioner on bail subject to such terms and conditions as the learned Magistrate may deem just and proper. While imposing condition, learned court below shall impose a condition that the Petitioner shall appear before the jurisdictional Police Station once in a month, preferably, on 'Sunday' in between 10.00 A.M. to 1 P.M., for a period four months, thereafter, once in a month for a period of three months. Violation of any of the terms and conditions shall entail cancellation of the bail.

6. It is further directed that the bail granted to the Petitioner shall be subject to the verification of his criminal antecedent and the injury report of the injured. In the event, the Petitioner is having more than two criminal antecedents and the injured person has sustained any grievous injury, then this order shall stand automatically revoked.

7. It is further directed that the bail granted to the Petitioner shall be subject to depositing a cash security of Rs.3,000/- (Rupees Three Thousand) before the learned Court in seisin over the matter, which shall be kept in any Nationalized bank in interest bearing account initially for a period of one year which will be renewable from time to time till conclusion of trial and the same shall be abide by the final outcome of the trial of the case.

8. The ABLAPL is disposed of accordingly.

Urgent certified copy of this order be granted as per rules.

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(A.K. Mohapatra)
Vacation Judge

Anil

Signature Not Verified
Digitally Signed
Signed by: ANIL KUMAR SAHOO
Reason: Authentication
Location: High Court of Orissa
Date: 24-Oct-2026 19:30:51